

Bihar Electricity Regulatory Commission (Budget) Rules, 2012

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State of Bihar - Act

Bihar Electricity Regulatory Commission (Budget) Rules, 2012

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Bihar Electricity Regulatory Commission (Budget) Rules, 2012

Rule BIHAR-ELECTRICITY-REGULATORY-COMMISSION-BUDGET-RULES-2012 of 2012

Published on 29 January 2013

Commenced on 29 January 2013

[This is the version of this document from 29 January 2013.]

[Note: The original publication document is not available and this content could not be verified.]

Bihar Electricity Regulatory Commission (Budget) Rules, 2012

Published vide Notification No. iz02 vk0ys0-13/11-03, dated 29.1.2013

Last Updated 10th February, 2020

No. iz0) vk0ys0-13/11-03. - In exercise of the powers conferred by sub-section (1) and clause (j) of sub-section (2) of section 180 read with section 106 of the Electricity Act, 2003 and all other powers enabling in this behalf, the Government of Bihar hereby makes the following Rules:-

Part - I

1.

Short title and commencement.

(1)

These rules may be called the Bihar Electricity Regulatory Commission (Budget) Rules, 2012.

(2)

It shall come into force on the date of publication in the official gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires:-

(a)

"Act" means the Electricity Act, 2003.

(b)

"Annual Financial Statement or Budget" means the statement of annual estimated receipts and expenditure of the Commission;

(c)

"Commission" means the Bihar Electricity Regulatory Commission;

(d)

"BERC Fund" means the Bihar Electricity Regulatory Commission Fund established by the State Government under section 103 of the Act;

(e)

"Form" means a form appended to these rules;

(f)

"State Government" means the Government of Bihar;

(g)

"Year" means the financial year starting from the 1st April and ending on the 31st March of the next year;

(h)

"Appendix" means an appendix to these rules;

(2)

All other words and expressions used in these rules and not defined, but defined in the Act shall have the meanings respectively assigned to them in the Act.

Part - II 3. Preparation of Budget.

- The Commission shall prepare its budget ie, Annual Financial statement (statement of annual estimated receipts and expenditure) for the next financial year, commencing from 1st April shall end on 31st March.

4.

Budget format.

- The Commission shall prepare its budget.-

(a)

in form-I(Receipts), its estimated receipts in the next financial year.

(b)

in form-II (Expenditure) its estimated expenditure in the next financial year.

(c)

in form-III sanctioned strength and man power in position and expenditure on pay and allowance.

5.

Account head.

- The budget of the Commission shall be prepared under appropriate heads of Account as decided by State Government from time to time. Primary units of receipts and expenditure heads with subject code are listed in Appendix.

6.

Submission of the Budget.

- The Budget estimates (Annual financial statement) so prepared under rule 3 and 4 above shall be submitted to the State Government on or before 30th September each year of the next financial year or such extended time as may be approved by the State Government.

7.

Preparation of revised budget estimates and its submission.

- In case the Budget estimates prepared under rule 3 and rule 4 above are found insufficient in the current year for any

reason, the commission may prepare revised budget estimates for the current financial year with proper justification and shall send to the State Government.

8.

Sources of funding of the budget estimates and the revised estimates.

(1)

Budget estimates, so prepared under rule 3 and 4 & revised estimates prepared under rule 7 shall be, at the first instance, funded from the BERC Fund and in case the BERC Fund is not sufficient, the shortfall shall be provided by the Government in the shape of grant-in-aid.

9.

Miscellaneous.

- In case of any doubt regarding interpretation of these rules, or when express provision has not been made in these rules about a particular matter, the same shall be referred to the State Government whose decision shall be final.

10.

Rules to be laid before Legislature.

- These Rules shall be laid, as soon as may be after it is made, before the Houses of the Legislature while it is in session for a total period of fourteen days. This period may be comprised in one session, or in two or more successive sessions. If, before the expiry of the session immediately following the session or the successive session aforesaid, the Houses agree in making any modifications in the Rules or the Houses agree that it should be passed as it is or the Houses agree that these Rules should not be made, these Rules shall, thereafter have effect only in such modified form or be deemed to be passed as it is by the Houses or be of no effect.

Appendix

(See Rule 5)

Bihar Electricity Regulatory Commission

List of Primary Units of Receipt and Expenditure Heads

Organization :- Bihar Electricity Regulatory Commission

Administrative Department :- Energy Department

Major Head :- 2801 (Exp.)/0801(Receipt) Electricity Major Sub Head: 80 General

Minor Head : 800 other Receipts/Charges Sub Head: 0001-Bihar Electricity Regulatory Commission

Bill Code : N2801808000001 Demand No. : 10

SI No.

Subject Code

Units (Subject details)

1.

Receipt Heads

3101 grant in aid

I. Grants-in-aid from State Government

II. Receipts of the Commission

0070

(a) License Fee

0070

(b) Fines

0070

(c) Application fee

0049

(d) Interest on deposit

0070

(e) Arbitration Fee

0070

(f) Other receipt

2.

Expenditure Heads

I. Employees Cost

0101

(a) Pay/ Leave salary/

0102

(b) Special Pay

0103

(c) Subsistence allowance/ Dearness Allowance

0104

(d) House Rent Allowance

0105

(e) Transport Allowance

0106

(f) Medical Allowance

0107

(g) Sumptuary Allowance

0107

(h) Domestic Help Allowance

0107

(i) Other Allowances

0107

(j) Honorarium

0107

(k) Bonus

3201

(l) Pension contribution

3201

(m) Leave salary contribution

0601

(n) Reimbursement of Medical Expenses

1101

(o) Travelling Expenses

1101

(p) Leave Travel Concession

II. Retirement Benefits

0403

(a) Pension

0404

(b) Gratuity

0406

(c) Leave encashment

III. Office Expenses

1303

(a) Telephone and Fax Charges

1301

(b) Postage/Courier Charges

1301

(c) Stationery

1301

(d) Computer Consumables

1301

(e) House Keeping and contingencies

1301

(f) Internet charges

1304

(g) Electricity Change

1301

(h) Hire Charges for Computers

1302

(i) Hire charges of Vehicle/POL and Maintenance of Vehicle

1301

(j) Other charges

1401

(k) Rent, and Taxes

1305

(l) Legal Expenses

1301

(m) Payment to Consultants

0201

(n) Wages

1301

(o) Audit fees

1301

(p) Memberships and subscription

1306

(q) Liveries

1301

(r) Hiring of Security Services

2001

(s) Hospitality Expenses

2003

(t) Training and Workshop Expenses

1301

(u) Miscellaneous Expenses

1302

(v) Registration and Road Tax of Motor Vehicle

IV. Repair and Maintenance

2702

(a) Building

2702

(b) Fax Machine

2702

(c) Water Coolers/Water Purifier

2702

(d) Air Conditioners

2702

(e) Fire Fighting equipment

2702

(f) Electrical equipment and accessories

2702

(g) Electronic Equipment

2702

(h) UPS and Batteries

2702

(i) Xerox Machine

2702

(j) Furniture and Fixture

1301

(k) Maintenance of Garden

1302

(l) Miscellaneous

V. Purchase of Assets (Non-recurring)

5201

(a) Computer and Peripherals (Hardware and Software)

5201

(b) Copier/Xerox machine

5201

(c) Fax

5201

(d) Telephone Installation

5201

(e) Water Coolers/ Water Purifier

5201

(f) Air Conditioners

5201

(g) Furniture & Fixtures

5101

(h) Purchase of New Motor Vehicle

1301

(i) Purchase of Books and Periodicals

1301

(j) Purchase of Bicycle

1301

(k) Others

VI. Other Expenditure (Charges)

1601

1. Publications and Printing

2002

2. Hearing, Seminar, Conference

2601

3. Publicity and Advertisement

2701

4. Minor Works

Any other expenditure head/item as notified by the State Government, from time to time.

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